

October 24, 2021

RE: Docket No. 20-15, Comments on PVO Financial Responsibility Rulemaking.

Deborah Pankey  
[REDACTED]  
[REDACTED]

I believe it is extremely necessary to have one set of MINIMUM requirements in regard to how a cruise line must refund deposit monies or monies paid in full for canceled cruise trips. This applies to those canceled by the cruise line and those canceled by an individual. Any law passed I would like to know the cruise line has the ability to be more generous in their refund policy. This helps to keep them competitive. I would like to see the refund time be 30 days if they cancel and 90 days if the government stops them from sailing, for reasons listed below.

I have cruised over 20 times and every line has a different policy that is constantly changing from year to year. Most of my trips are from two to three weeks in duration. The frustration comes when you book a cruise, and they change the rules from the time you booked until the time the ship sails. Most cruise line contracts say they have the right to change ANY of their rules when they want. This should stop. It is a very one sided contract.

You used to be able to cancel a cruise prior to final payment with a full refund of your deposit money. Now they are customarily charging an "Administration Fee" of \$100 to \$300 if you cancel prior to final payment. Even if the reason you cancel is because they changed their rules or they changed their itinerary. This is unfair and to me is like a "bait and switch" tactic. I believe if a cruise line cancels a trip, they should refund all monies within 30 days. If a trip is canceled, I want the ability to rebook another trip with a different cruise line quickly so as to not ruin my vacation time. If I have paid \$30,000 for two people, with the cruise line that canceled on me, I don't have an extra \$30,000 to book another cruise until such time as they refund my money. Since I customarily put my cruise on a credit card, if they refund within 30 days, then, in all likelihood, my refund will happen in the same billing period as the new charge for the new cruise. In addition, if a cruise line cancels a cruise, then those passengers will be seeking another similar cruise in the same time frame and if I don't have the money to rebook without my refund then I lose the ability to secure another cruise within my vacation time.

ALL of the power is in the hands of the cruise line to do anything they want, including changing an itinerary before a trip even leaves port without notifying the passenger. I understand having to change ports for weather, mechanical reasons or port denial reasons, but often the cruise line knows in advance of sailing that they will not be calling

at that port and does not tell the passenger until AFTER they are on the trip. It makes me feel cheated as often time I booked that specific cruise for a specific port they advertised they were stopping at.

From a consumer point of view this is a largely an unregulated industry as to advertising and contracts they present to a passenger. There is little to no recourse for the consumer. You are just praying nothing changes, because you certainly won't be getting any money refunded. Most of their contracts say you have to bring any legal proceedings in the country of their registry. As most of the cruise lines port of registry is overseas, who has the time or money to go to Portugal for a lawsuit?

Thank you for taking the time to read my comments. I hope this helps in making your decisions on how to best protect the consumer.

Deborah Pankey.

A handwritten signature in cursive script that reads "Deborah Pankey". The signature is written in black ink and is positioned below the typed name.